

TENTATIVE RULINGS

August 03, 2026

	Case Name	Tentative
102	2026-01547622 Zarvos vs. Kevin Van Raden, Trustee of the Van Raden Family Trust	Motion to Set Aside/Vacate Default and Judgment Defendant Kevin Van Raden’s Motion to Set Aside Entry of Default and Default Judgment is granted. The Court finds Defendant should be granted discretionary relief under CCP section 473(b). The statute provides, in relevant part, that: “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) If a party moves promptly for relief from default, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), “very slight evidence is required to justify a trial court’s order setting aside a default.” (<i>Iott v. Franklin</i> (1988) 206 Cal.App.3d 521, 526, citing <i>Shamblin v. Brattain</i> (1988) 44 Cal.3d 474, 478.) The statute is to be “liberally construed” as “sound policy favors the determination of actions on their merits.” Any doubts “must be resolved in favor of the party seeking relief from default.” (<i>Shapell Socal Rental Properties, LLC v. Chico’s FAS, Inc.</i> (2022) 85 Cal.App.5th 198, 212.) A motion for discretionary relief under section 473(b) must satisfy three requirements. First, the motion must be made “within a reasonable time” and “in no case exceeding six months” after the entry of default (unless relief is sought on equitable grounds). (Code of Civ. Proc. § 473, subd. (b).) Second, the motion “shall be accompanied” by a copy of the answer or other proposed pleading to be filed, “otherwise the application shall not be granted.” (Code of Civ. Proc. § 473, subd. (b).) Lastly, the motion must show that default was taken as a result of mistake, inadvertence, surprise, or excusable neglect. The Court finds all three requirements have been satisfied, here. First, the motion was timely made within approximately one month of the entry of default and entry of default judgment. (See ROA 15, 20, 32.) Second, the motion is accompanied by a copy of the proposed answer. (See ROA 33.) Lastly, the motion is supported by a declaration from Defendant explaining that default was entered as a result of his lack of understanding that he had to respond within 30 days. (See ROA 28.) The Court does not find Plaintiff’s arguments as to why relief should be denied, to be persuasive. The Court also declines to exercise its discretion to impose a \$1,000 penalty against Defendant, as requested by Plaintiff. The default (ROA 15) and default Judgment (ROA 20) entered against Defendant are, hereby, vacated. Defendant shall file and serve his proposed answer by August 14, 2026. The Court sets a case management conference on January 4, 2027 at 10:00 a.m. in Department C27. Defendant shall give notice of the ruling.